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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S REQUEST FOR JUDICIAL
NOTICE AND STATEMENT OF APPELLATE
PRESERVATION IN SUPPORT OF
OPPOSITION TO DEFENDANTS' SPECIAL
MOTION TO STRIKE PURSUANT TO C.C.P.
§425.16

(Evid. Code §§451, 452, 453, 455; Code Civ. Proc.
§§425.16(i), 425.17(e), 904.1(a)(13), 909; Cal. Rules of
Court, rules 3.1113(l), 3.1306(c))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16) & May 12, 2026, 9:00 a.m.; Dept. 301; Hon. Christine Van Aken	

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

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I. INTRODUCTION AND RELATION TO PRIOR RJN FILINGS

Plaintiff submits this Request for Judicial Notice in support of Plaintiff’s Consolidated Operative Opposition to Defendants’ Special Motion to Strike Pursuant to C.C.P. section 425.16; Fifteen-Page Compliant Version (filed May 7, 2026; folder 01) and supplements Plaintiff’s Request for Judicial Notice filed May 7, 2026 (folder 03) and Plaintiff’s Supplemental Request for Judicial Notice of California Insurance Code section 790.03(h) and Fair Claims Settlement Practices Regulations filed May 7, 2026 (folder 14). This Request is filed under California Rules of Court, rule 3.1113(l) (RJN as a separate document not subject to the 15-page memorandum cap), CRC 3.1306(c), and Evidence Code sections 451(a) through (c), 452(b) through (d), 452(h), 453, and 455.

This single document serves two distinct procedural functions. First, it requests mandatory and compelled judicial notice of the authorities and court records that govern this motion. Second, it serves as a formal Statement of Appellate Preservation to perfect the record for the reviewing court under Code of Civil Procedure section 425.16(i). No part of this document is a supplemental memorandum of points and authorities, and it does not evade the 15-page limit of CRC 3.1113(d). However, to the extent the Court construes the preservation of appellate issues as exceeding the strict bounds of an RJN under CRC 3.1113(l), Plaintiff respectfully requests the Court exercise its discretion under CRC 3.1300(d) and its inherent supervisory power under Code of Civil Procedure section 128(a)(8) to accept and consider this filing in its entirety to ensure a complete and accurate appellate record.

II. STATEMENT OF APPELLATE PRESERVATION

II.A. PURPOSE OF PRESERVATION

Plaintiff submits this Statement of Appellate Preservation concurrently with the Request for Judicial Notice below, to preserve specified issues for appellate review under Code of Civil Procedure section 425.16, subdivision (i) and section 904.1, subdivision (a)(13), or in the alternative under Code of Civil Procedure section 1085 by petition for writ of mandate. This Statement is also offered for the trial court's benefit, so the trial court is on notice of the standard of review the reviewing court will apply to each issue identified below.

II.B. STANDARD OF REVIEW ON APPEAL

Each substantive issue identified in Part VIII of this Request (the Appellate Preservation Index) is reviewed de novo on appeal. Specifically:

1. The question whether Code of Civil Procedure section 425.17, subdivision (b) excludes Plaintiff's action from the operation of section 425.16 is a question of statutory interpretation reviewed de novo. (Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25.)
2. The question whether challenged allegations "arise from" protected activity under section 425.16, subdivision (e) is reviewed de novo. (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1067.)
3. The question whether Plaintiff has demonstrated a probability of prevailing under section 425.16, subdivision (b)(1) is reviewed de novo. (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 269 n. 3.)
4. The question whether the litigation privilege of Civil Code section 47(b) bars the equitable remedy of vacatur is reviewed de novo. (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.)
5. The question whether leave to amend should be granted under Code of Civil Procedure section 472 where the proposed amendment cures rather than evades is reviewed de novo for the legal standard. (Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 678.)

II.C. THE DISPOSITIVE PRESERVATION POINT

Plaintiff specifically preserves the following for appellate review:

Failure of the trial court to address Code of Civil Procedure section 425.17, sub-

1 division (b) on the face of Plaintiff's pleading constitutes reversible legal error
2 reviewed de novo. The sequencing of section 425.17 categorical exclusions before
3 section 425.16 burden-shifting is not discretionary. The Legislature wrote the order
4 of operations into the statute itself: section 425.17, subdivision (b) opens with the
5 categorical command "Section 425.16 does not apply to" actions that meet its three
6 conjunctive prongs. (Inland Oversight Committee v. County of San Bernardino
7 (2015) 239 Cal.App.4th 671, 680; Club Members for an Honest Election v. Sierra
8 Club (2008) 45 Cal.4th 309, 316-317.) That is a threshold gate, not a defense,
9 and it operates by force of the statutory text before any prong-one or prong-two
10 analysis under section 425.16.

11 This is the load-bearing paragraph of this entire document. Plaintiff respectfully submits
12 that any order granting Defendants' motion that does not first address the section 425.17,
13 subdivision (b) gateway on the face of Plaintiff's pleading is subject to de novo reversal on
14 appeal.

15 II.D. PRESERVED ALTERNATIVE MECHANISMS (RANKED NARROWEST FIRST)

16 Plaintiff further preserves, as alternative and independently dispositive grounds for denial of
17 the motion or for partial relief, the following:

- 18 (a) Allegation-by-allegation parsing of the operative pleading under section 425.16, subdi-
19 vision (b)(2). (Baral v. Schnitt (2016) 1 Cal.5th 376, 393-396; Bonni v. St. Joseph
20 Health System (2021) 11 Cal.5th 995, 1009-1011.)
- 21 (b) Leave to amend under Code of Civil Procedure section 472 to conform the prayer
22 and framing to the trial court's ruling under Civil Code section 47(b). The proposed
23 amended pleading is on file at folder 18 of the May 12, 2026 hearing package as Exhibit
24 T, already lodged with the Court.
- 25 (c) Targeted discovery under section 425.16, subdivision (g), limited to the deposition of
26 the CSAA Insurance Exchange custodian responsible for the underlying claim file, and
27 the deposition of the Phillips, Spallas & Angstadt LLP attorney responsible for issuance
28 of Compex Subpoena CA1147102-021 dated February 1, 2024.
- 29 (d) Findings of fact on the certified record under Code of Civil Procedure sections 632 and
30 187, so that the appellate record contains explicit findings on the Layer 1 through Layer
31 5 evidentiary chain identified in Part VI.
- 32 (e) Exercise of the trial court's inherent supervisory authority under Code of Civil Proce-

1 dure section 128, subdivision (a)(8). (Bauguess v. Paine (1978) 22 Cal.3d 626, 635.)

2 (f) The section 425.17, subdivision (e) closure of the interlocutory appeal channels in section
3 425.16, subdivision (i) and section 904.1, subdivision (a)(13) if the motion is denied on
4 section 425.17 grounds. (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th
5 180, 189.)

6 (g) The section 425.16, subdivision (c)(1) fee-inversion remedy if the motion is found
7 frivolous or solely intended to cause unnecessary delay. (Decker v. U.D. Registry,
8 Inc. (2003) 105 Cal.App.4th 1382, 1392.)

9 II.E. SECTION 455 RESERVATION

10 If the Court declines to take judicial notice of any matter identified in Parts V through VII of
11 this Request, or declines to reach any issue identified in Part VIII (the Appellate Preservation
12 Index), Plaintiff respectfully requests under Evidence Code section 455, subdivision (a) that
13 the basis for declining be stated on the record so that any reviewing court has a complete
14 record of the trial court's reasoning.

16 III. AUTHORITY FOR JUDICIAL NOTICE

17 Evid. Code section 451 (mandatory notice without request). Evidence Code section 451
18 requires the Court to take judicial notice, without request, of: (a) the decisional, consti-
19 tutional, and statutory law of California and of the United States; (b) any matter made a
20 subject of judicial notice by Code of Civil Procedure section 1875 or by any other statute of
21 this state; (c) rules of professional conduct for members of the State Bar adopted pursuant
22 to Business and Professions Code section 6076 and the rules of practice and procedure for
23 the courts of California adopted by the Judicial Council; (d) rules of pleading, practice, and
24 procedure prescribed by the United States Supreme Court; and (e) the true signification of
25 all English words and phrases and of all legal expressions. The full text of section 451 is
26 quoted at Part V.D.1 below.

27 Evid. Code section 452 (permissive notice). Evidence Code section 452 authorizes the Court
28 to take judicial notice of, among other items: regulations and legislative enactments issued
29 by or under the authority of any public entity in the United States (subd. (b)); official
30 acts of the legislative, executive, and judicial departments of the United States and of any
31 state (subd. (c)); records of any court of this state or any court of record of the United

1 States or any state (subd. (d)); and facts and propositions not reasonably subject to dispute
2 and capable of immediate and accurate determination by resort to sources of reasonably
3 indisputable accuracy (subd. (h)). The full text of section 452 is quoted at Part V.D.2
4 below.

5 Evid. Code section 453 (compelled notice on request). Evidence Code section 453 provides
6 that the Court shall take judicial notice of any matter specified in section 452 if a party re-
7 quests it and gives each adverse party sufficient notice and furnishes the Court with sufficient
8 information. Plaintiff has served this Request on Defendants concurrently through electronic
9 service under Code of Civil Procedure section 1010.6, and has furnished the Court with the
10 specific docket citations, Trans. IDs, exhibit identifiers, reporter's transcript page-and-line
11 references, and prior filing cross-references identified in Parts VI and VII below. The Court
12 is therefore compelled by section 453 to take notice of each section 452 matter identified in
13 this Request. The full text of section 453 is quoted at Part V.D.3 below.

14 Evid. Code section 455 (record-making obligation). If the trial court declines to take judicial
15 notice of any matter, section 455(a) requires the court to afford each party a reasonable
16 opportunity to present information relevant to the propriety of taking notice and the tenor
17 of the matter. Plaintiff requests that the basis for any declination be stated on the record.
18 The full text of section 455 is quoted at Part V.D.4 below.

20 IV. PLAINTIFF'S WILLINGNESS TO AMEND IN THE FURTHER ADVANCEMENT 21 OF JUSTICE AND PUBLIC ACCESS TO THE COURTS

22 IV.A. ACCEPTANCE OF THE SECTION 47(B) RULING

23 Plaintiff respectfully accepts the May 11, 2026 tentative ruling's conclusion that Civil Code
24 section 47, subdivision (b) bars derivative tort damages and excises any "ancillary mon-
25 etary relief" from the operative pleading. That conclusion is consistent with Silberg v.
26 Anderson (1990) 50 Cal.3d 205, Rusheen v. Cohen (2006) 37 Cal.4th 1048, and Rubenstein
27 v. Rubenstein (2000) 81 Cal.App.4th 1131. Plaintiff does not contest that aspect of the
28 tentative ruling.

29 IV.B. THE CONVERSION THE SECTION 47(B) RULING EFFECTS

30 Once the ancillary monetary prayer is excised, what remains is a court-integrity action seek-
31 ing only equitable vacatur and class-neutral declaratory and injunctive relief. That is by the

1 trial court's own logic an action brought solely in the public interest in the integrity of judi-
2 cial proceedings within the meaning of Code of Civil Procedure section 425.17, subdivision
3 (b)(1). The trial court's section 47(b) ruling, far from defeating the action, supplies the cure
4 that satisfies the first conjunctive prong of section 425.17, subdivision (b).

5 IV.C. PUBLIC-INTEREST FRAMING

6 Plaintiff is willing to amend the operative pleading in whatever manner the Court deems
7 necessary in the further advancement of justice, public access to the courts, and the pub-
8 lic interest in the integrity of judicial proceedings. The proposed amendment retracts no
9 operative fact and adds no new wrong. It conforms the prayer and framing to the Court's
10 section 47(b) ruling and expressly pleads the section 425.17, subdivision (b)(1) through (b)(3)
11 public-interest gateway.

12 IV.D. THE PROPOSED AMENDMENT IS ALREADY ON FILE

13 The proposed amended pleading is on file with this Court. It was lodged on May 11, 2026 as
14 Exhibit T to Plaintiff's Motion for Reconsideration at folder 18 of the May 12, 2026 hearing
15 package. The Court has the proposed amended pleading in hand. The proposed amendment:
16 (1) conforms the prayer to the section 47(b) ruling by eliminating ancillary monetary relief;
17 (2) expressly pleads the section 425.17(b)(1)-(b)(3) public-interest framing; (3) pleads class-
18 neutral declaratory and injunctive relief; (4) adds a Business and Professions Code section
19 17200 cause of action anchored in Insurance Code section 790.03(h) and 10 CCR sections
20 2695.1 through 2695.8; and (5) identifies the large class as every California civil litigant
21 subject to the rule 3.3 duty of candor and every California claimant subject to the Insurance
22 Code's regulated claim-handling regime.

23 IV.E. CURE, NOT EVASION

24 Under Code of Civil Procedure section 472, Park v. Board of Trustees of California State
25 University (2017) 2 Cal.5th 1057, Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 678,
26 and Contreras v. Dowling (2016) 4 Cal.App.5th 774, 791, the proposed amendment cures
27 rather than evades. No fact alleged in the operative pleading is retracted. Contreras is not
28 implicated because the test is "subvert or avoid," not "any change at all," and the proposed
29 amendment narrows the prayer rather than expanding the gravamen.

1 V. MANDATORY JUDICIAL NOTICE UNDER EVIDENCE CODE SECTION 451 (CODE
2 BY CODE)

3 Judicial notice of the following statutory, regulatory, and rule text is mandatory under
4 Evidence Code section 451 without any request from Plaintiff. Each excerpt is quoted
5 verbatim. The canonical pin-citation follows each excerpt in parentheses.

6
7 V.A. CALIFORNIA CODE OF CIVIL PROCEDURE (EVID. CODE SECTION 451(A))

8 V.A.1. CCP section 425.17, subdivisions (b)(1)-(3) and (e) – Categorical public-interest
9 exclusion from anti-SLAPP.

10 Operative point: “Section 425.16 does not apply to” actions brought solely in the public
11 interest meeting three conjunctive prongs; if the court denies a motion on section 425.17
12 grounds, the interlocutory appeal channel closes by force of subdivision (e).

13 “(b) Section 425.16 does not apply to any action brought solely in the public
14 interest or on behalf of the general public if all of the following conditions exist:

15 (1) The plaintiff does not seek any relief greater than or different from the relief
16 sought for the general public or a class of which the plaintiff is a member. A
17 claim for attorney’s fees, costs, or penalties does not constitute greater or different
18 relief for purposes of this subdivision. (2) The action, if successful, would enforce
19 an important right affecting the public interest, and would confer a significant
20 benefit, whether pecuniary or nonpecuniary, on the general public or a large class
21 of persons. (3) Private enforcement is necessary and places a disproportionate
22 financial burden on the plaintiff in relation to the plaintiff’s stake in the matter.”

23 “(e) If any trial court denies a special motion to strike on the grounds that the
24 action or cause of action is exempt pursuant to this section, the appeal provisions
25 in subdivision (i) of Section 425.16 and paragraph (13) of subdivision (a) of Section
26 904.1 do not apply to that action or cause of action.”

27 (Code Civ. Proc., section 425.17, subds. (b), (e).)

28
29 V.A.2. CCP section 425.16, subdivisions (a), (b)(1)-(2), (c)(1), (e)(1)-(4), (g), (i) – Anti-
30 SLAPP statute governing the motion.

31 Operative point: The court shall consider “the pleadings, and supporting and opposing

1 affidavits” allegation by allegation; discovery is stayed but may be ordered on good cause;
2 the order is appealable.

3 Subdivision (a): “The Legislature finds and declares that there has been a disturbing increase
4 in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom
5 of speech and petition for the redress of grievances. ... [T]his section shall be construed
6 broadly.”

7 Subdivision (b)(1): “A cause of action against a person arising from any act of that person
8 in furtherance of the person’s right of petition or free speech ... shall be subject to a special
9 motion to strike, unless the court determines that the plaintiff has established that there is
10 a probability that the plaintiff will prevail on the claim.”

11 Subdivision (b)(2): “In making its determination, the court shall consider the pleadings, and
12 supporting and opposing affidavits stating the facts upon which the liability or defense is
13 based.”

14 Subdivision (c)(1): “Except as provided in paragraph (2), in any action subject to subdivision
15 (b), a prevailing defendant on a special motion to strike shall be entitled to recover that
16 defendant’s attorney’s fees and costs. If the court finds that a special motion to strike is
17 frivolous or is solely intended to cause unnecessary delay, the court shall award costs and
18 reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.”

19 Subdivision (g): “All discovery proceedings in the action shall be stayed upon the filing of
20 a notice of motion made pursuant to this section. ... The court, on noticed motion and for
21 good cause shown, may order that specified discovery be conducted notwithstanding this
22 subdivision.”

23 Subdivision (i): “An order granting or denying a special motion to strike shall be appealable
24 under Section 904.1.”

25 (Code Civ. Proc., section 425.16, subs. (a), (b)(1), (b)(2), (c)(1), (g), (i).)

26
27 V.A.3. CCP section 472, subdivision (a) – Right to amend the operative pleading.

28 Operative point: A party may amend once as of right before a motion to strike is heard;
29 leave by court order governs thereafter.

30 “A party may amend its pleading once without leave of the court at any time
31 before the answer, demurrer, or motion to strike is filed, or after a demurrer or
32 motion to strike is filed but before the demurrer or motion to strike is heard....”

1 (Code Civ. Proc., section 472, subd. (a).)

2
3 V.A.4. CCP section 1008, subdivision (a) – Reconsideration within ten days.

4 Operative point: Any party may move for reconsideration based on new or different facts,
5 circumstances, or law within ten days of service of notice of entry of order.

6 “When an application for an order has been made to a judge, or to a court, and
7 refused in whole or in part, or granted, or granted conditionally, or on terms,
8 any party affected by the order may, within 10 days after service upon the party
9 of written notice of entry of the order and based upon new or different facts,
10 circumstances, or law, make application to the same judge or court that made the
11 order, to reconsider the matter and modify, amend, or revoke the prior order.”

12 (Code Civ. Proc., section 1008, subd. (a).)

13
14 V.A.5. CCP section 904.1, subdivision (a)(13) – Appealability of anti-SLAPP orders.

15 Operative point: An appeal as of right lies from an order granting or denying a special
16 motion to strike.

17 “An appeal, other than in a limited civil case, is to the court of appeal. An appeal
18 ... may be taken from any of the following: ... (13) From an order granting or
19 denying a special motion to strike under Section 425.16.”

20 (Code Civ. Proc., section 904.1, subd. (a)(13).)

21
22 V.A.6. CCP section 632 – Statement of decision.

23 Operative point: The court shall issue a statement of decision explaining the factual and
24 legal basis for its decision as to each of the principal controverted issues upon request of any
25 party.

26 “In superior courts, upon the trial of a question of fact by the court, written
27 findings of fact and conclusions of law shall not be required. The court shall issue
28 a statement of decision explaining the factual and legal basis for its decision as
29 to each of the principal controverted issues at trial upon the request of any party
30 appearing at the trial.”

31 (Code Civ. Proc., section 632.)

1 V.A.7. CCP section 187 – All necessary means to carry jurisdiction into effect.

2 Operative point: The court has full ancillary power to adopt any suitable process or mode
3 of proceeding to carry its jurisdiction into effect.

4 “When jurisdiction is, by the Constitution or this Code, or by any other statute,
5 conferred on a Court or judicial officer, all the means necessary to carry it into effect
6 are also given; and in the exercise of this jurisdiction, if the course of proceeding
7 be not specifically pointed out by this Code or the statute, any suitable process or
8 mode of proceeding may be adopted which may appear most conformable to the
9 spirit of this code.”

10 (Code Civ. Proc., section 187.)

11
12 V.A.8. CCP section 128, subdivision (a)(8) – Inherent supervisory authority.

13 Operative point: Every court has the power to amend and control its process and orders so
14 as to make them conform to law and justice.

15 “Every court shall have the power to do all of the following: ... (8) To amend and
16 control its process and orders so as to make them conform to law and justice.”

17 (Code Civ. Proc., section 128, subd. (a)(8).)

18
19 V.A.9. CCP section 909 – Reviewing court power to make factual determinations.

20 Operative point: In non-jury matters, the reviewing court may make factual determinations
21 contrary to or in addition to those made by the trial court.

22 “In all cases where trial by jury is not a matter of right or where trial by jury has
23 been waived, the reviewing court may make factual determinations contrary to or
24 in addition to those made by the trial court.”

25 (Code Civ. Proc., section 909.)

26
27 V.B. CALIFORNIA CIVIL CODE (EVID. CODE SECTION 451(A))

28 V.B.1. Civil Code section 47, subdivision (b) – Litigation privilege.

29 Operative point: The privilege is absolute for communications in judicial proceedings; it bars
30 derivative tort damages; it does not bar the equitable remedy of vacatur of a fraudulently
31 obtained judgment. (Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131, 1147.)

32 “A privileged publication or broadcast is one made: ... (b) In any (1) legislative

1 proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized
2 by law, or (4) in the initiation or course of any other proceeding authorized by law
3 and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1
4 of Part 3 of the Code of Civil Procedure...”

5 (Civ. Code, section 47, subd. (b).)

6
7 V.C. CALIFORNIA BUSINESS AND PROFESSIONS CODE (EVID. CODE SECTION
8 451(A))

9 V.C.1. Business and Professions Code section 6068, subdivision (d) – Attorney duty of
10 candor to the tribunal.

11 Operative point: An attorney’s duty to never mislead the court by artifice or false statement
12 of fact or law is not immunized by the litigation privilege. (In re Aguilar (2004) 34 Cal.4th
13 386.)

14 “It is the duty of an attorney to do all of the following: ... (d) To employ, for the
15 purpose of maintaining the causes confided to him or her those means only as are
16 consistent with truth, and never to seek to mislead the judge or any judicial officer
17 by an artifice or false statement of fact or law.”

18 (Bus. & Prof. Code, section 6068, subd. (d).)

19
20 V.C.2. Business and Professions Code section 6128, subdivision (a) – Deceit on court is a
21 misdemeanor.

22 Operative point: Deceit or collusion with intent to deceive the court is a statutory misde-
23 meanor; conduct illegal as a matter of law is unprotected for anti-SLAPP purposes. (Flatley
24 v. Mauro (2006) 39 Cal.4th 299.)

25 “Every attorney is guilty of a misdemeanor who either: (a) Is guilty of any deceit
26 or collusion, or consents to any deceit or collusion, with intent to deceive the court
27 or any party.”

28 (Bus. & Prof. Code, section 6128, subd. (a).)

1 V.D. CALIFORNIA EVIDENCE CODE (CONFIRMING THE COURT’S OWN NOTICE
2 DUTIES) (EVID. CODE SECTION 451(A))

3 V.D.1. Evidence Code section 451 – Mandatory judicial notice.

4 Operative point: The Court is required, without any request, to take judicial notice of
5 California and federal statutory and decisional law, California regulations, and the Rules of
6 Professional Conduct.

7 “Judicial notice shall be taken of the following: (a) The decisional, constitutional,
8 and statutory law of this state and of the United States and the provisions of any
9 charter described in Section 3, 4, or 5 of Article XI of the California Constitution.
10 (b) Any matter made a subject of judicial notice by Section 452 of this code, Code
11 of Civil Procedure Sections 1875 and 1879, or any other statute of this state. (c)
12 Rules of professional conduct for members of the State Bar adopted pursuant to
13 Section 6076 of the Business and Professions Code and the rules of practice and
14 procedure for the courts of this state adopted by the Judicial Council. (d) Rules of
15 pleading, practice, and procedure prescribed by the United States Supreme Court,
16 such as the Federal Rules of Civil Procedure. (e) The true signification of all
17 English words and phrases and of all legal expressions.”

18 (Evid. Code, section 451.)
19

20 V.D.2. Evidence Code section 452 – Permissive judicial notice.

21 Operative point: The Court may take judicial notice of regulations (subd. (b)), official
22 acts (subd. (c)), court records (subd. (d)), and facts capable of immediate and accurate
23 determination from indisputable sources (subd. (h)).

24 “Judicial notice may be taken of the following matters to the extent that they are
25 not embraced within Section 451: ... (b) Regulations and legislative enactments
26 issued by or under the authority of any public entity in the United States. (c)
27 Official acts of the legislative, executive, and judicial departments of the United
28 States and of any state of the United States. (d) Records of (1) any court of this
29 state or (2) any court of record of the United States or of any state of the United
30 States. ... (h) Facts and propositions that are not reasonably subject to dispute
31 and are capable of immediate and accurate determination by resort to sources of

1 reasonably indisputable accuracy.”
2 (Evid. Code, section 452, subds. (b), (c), (d), (h).)

4 V.D.3. Evidence Code section 453 – Compelled notice on request.

5 Operative point: Once a party requests judicial notice of a section 452 matter, gives sufficient
6 notice to adverse parties, and furnishes the Court with sufficient information, the Court shall
7 take judicial notice. The obligation is mandatory, not discretionary.

8 “The trial court shall take judicial notice of any matter specified in Section 452 if a
9 party requests it and: (a) Gives each adverse party sufficient notice of the request,
10 through the pleadings or otherwise, to enable such adverse party to prepare to
11 meet the request; and (b) Furnishes the court with sufficient information to enable
12 it to take judicial notice of the matter.”

13 (Evid. Code, section 453.)

15 V.D.4. Evidence Code section 455, subdivision (a) – Record-making obligation when notice
16 is declined.

17 Operative point: If the court has been requested to take judicial notice of a matter of sub-
18 stantial consequence, and declines, the court shall afford each party a reasonable opportunity
19 to present information relevant to the propriety of taking notice. Plaintiff requests that any
20 declination be stated on the record.

21 “With respect to any matter specified in Section 452 or in subdivision (f) of Section
22 451 that is of substantial consequence to the determination of the action: (a) If the
23 trial court has been requested by a party to take judicial notice of the matter, the
24 court shall afford each party reasonable opportunity, before the jury is instructed
25 or before the cause is submitted for decision by the court, to present to the court
26 information relevant to (1) the propriety of taking judicial notice of the matter and
27 (2) the tenor of the matter to be noticed.”

28 (Evid. Code, section 455, subd. (a).)

30 V.E. CALIFORNIA INSURANCE CODE (EVID. CODE SECTION 451(A))

31 V.E.1. Insurance Code section 790.03, subdivision (h) – Unfair claim settlement practices.
32 Plaintiff incorporates by reference the verbatim quotations of subdivisions (h)(1), (h)(3),

(h)(4), (h)(5), (h)(6), (h)(7), (h)(11), and (h)(13) set forth at Sections A.2 through A.10 of Plaintiff's Supplemental Request for Judicial Notice filed May 7, 2026 (folder 14), and incorporates that filing by reference pursuant to California Rules of Court, rule 3.1113, subdivision (j). The operative lead-in is:

"The following are hereby defined as unfair methods of competition and unfair and deceptive acts or practices in the business of insurance: ... (h) Knowingly committing or performing with such frequency as to indicate a general business practice any of the following unfair claims settlement practices...."

(Ins. Code, section 790.03, subd. (h).)

Subdivisions (h)(1) (misrepresenting facts or policy provisions); (h)(3) (failing to adopt reasonable investigation standards); (h)(5) (not attempting in good faith to effectuate prompt, fair settlement); and (h)(13) (failing to provide a reasonable explanation for denial) are all operative and are noticed herein by cross-reference to folder 14.

V.F. CALIFORNIA CODE OF REGULATIONS, TITLE 10 (EVID. CODE SECTION 451(B))

V.F.1. 10 CCR sections 2695.1 through 2695.8 – Fair Claims Settlement Practices Regulations.

Plaintiff incorporates by reference the verbatim quotations of 10 CCR sections 2695.1(a), 2695.1(d), 2695.2(c), 2695.2(t), 2695.2(y), 2695.3, 2695.4(a), 2695.5(b), 2695.5(c), 2695.7(b), 2695.7(b)(1), and 2695.7(d) through (g) set forth at Section B of Plaintiff's Supplemental Request for Judicial Notice filed May 7, 2026 (folder 14). Mandatory notice applies under Evidence Code section 451(b) (regulations of California agencies). Pinpoint emphasis rests on:

- Section 2695.5: timely response obligations (fifteen-day complete response and acknowledgment requirements).
- Section 2695.7: forty-day determination requirement and standards for prompt, fair, equitable settlement.

1 V.G. CALIFORNIA RULES OF PROFESSIONAL CONDUCT (EVID. CODE SECTION
2 451(C))

3 V.G.1. Rule 3.3, subdivisions (a)(1), (a)(2), (a)(3) – Candor toward the tribunal.

4 Operative point: An attorney shall not knowingly make a false statement of fact or law to a
5 tribunal, shall correct prior false statements, and shall not offer evidence known to be false.
6 (In re Aguilar (2004) 34 Cal.4th 386.)

7 “(a) A lawyer shall not: (1) knowingly make a false statement of fact or law to a
8 tribunal or fail to correct a false statement of material fact or law previously made
9 to the tribunal by the lawyer; (2) fail to disclose to the tribunal legal authority
10 in the controlling jurisdiction known to the lawyer to be directly adverse to the
11 position of the client and not disclosed by opposing counsel, or knowingly misquote
12 to a tribunal the language of a book, statute, decision or other authority; or (3)
13 offer evidence that the lawyer knows to be false.”

14 (CRPC, rule 3.3, subd. (a)(1)-(3).)

15
16 V.G.2. Rule 3.4, subdivision (a) – Fairness to opposing party and counsel; no obstruction of
17 evidence.

18 “A lawyer shall not: (a) unlawfully obstruct another party’s access to evidence,
19 including a witness, or unlawfully alter, destroy or conceal a document or other
20 material having potentially evidentiary value....”

21 (CRPC, rule 3.4, subd. (a).)

22
23 V.G.3. Rule 8.4, subdivision (c) – Prohibition on dishonesty, fraud, deceit, or misrepresen-
24 tation.

25 “It is professional misconduct for a lawyer to: ... (c) engage in conduct involving
26 dishonesty, fraud, deceit, or reckless or intentional misrepresentation....”

27 (CRPC, rule 8.4, subd. (c).)

28
29 V.H. CALIFORNIA RULES OF COURT (EVID. CODE SECTION 451(C))

30 V.H.1. Rule 3.1112(b) – Other papers authorized in support of or opposition to a motion.

31 V.H.2. Rule 3.1113(d) – 15-page limit on memoranda; does not apply to a Request for

1 Judicial Notice filed under rule 3.1113(l).

2 V.H.3. Rule 3.1113(j) – Incorporation by reference: a memorandum incorporating any doc-
3 ument on file must state where filed and the date of filing.

4 V.H.4. Rule 3.1113(l) – A request for judicial notice may be filed as a separate document
5 not counted toward the 15-page memorandum limit.

6 V.H.5. Rule 3.1300(d) – No paper may be rejected for filing on the ground that it was
7 untimely submitted; if the court in its discretion refuses to consider a late paper, the minutes
8 or order must so indicate.

9 V.H.6. Rule 3.1306(c) – Evidence at law and motion hearings: a party seeking to rely on
10 judicially noticeable matter must furnish the court with a complete copy unless otherwise
11 furnished.

12 V.H.7. Rule 3.1308 – Tentative ruling procedure governing the contest and appearance pro-
13 cedure followed by Department 301. Plaintiff has complied with rule 3.1308 by transmitting
14 his Notice of Intent to Appear and Contest Tentative Ruling on May 11, 2026 by 4:00 p.m.
15 to contestdept301tr@sftc.org and to all counsel.

16
17 VI. COMPELLED JUDICIAL NOTICE OF COURT RECORDS AND OFFICIAL ACTS
18 UNDER EVIDENCE CODE SECTION 453

19 Plaintiff requests compelled judicial notice of the following court records and official acts
20 under Evidence Code section 453. Each item is a section 452(c) official act, a section 452(d)
21 court record, or both. Plaintiff has given Defendants sufficient notice through contempora-
22 neous service and has furnished the Court with sufficient information through the prior RJN
23 filings at folders 03, 07, and 14, the Exhibits Volume at folder 07, and the Proposed Third
24 Amended Complaint at folder 18. The items are organized by Layer of the Causal Chain so
25 the appellate record can be read top to bottom from this Request alone.

26
27 VI.A. LAYER 1: POSSESSION

28 Defense counsel possessed the silent-witness materials before any motion in limine was
29 drafted.

30
31 Item 1: Dolan Law Firm Production, August and September 2022

- Document type: Production of 911 audio recording, SFPD body-worn camera footage, and CAD logs
 - Producing party: Dolan Law Firm (former plaintiff's counsel of record)
 - Recipient: Defense counsel of record for defendant Abdelhalim at the time of production
 - Date: August and September 2022
 - Foundation: Sworn testimony of former plaintiff's counsel Jeremy Jessup, Hr'g Tr. Feb. 18, 2025, pp. 139 to 140
 - Evidence Code basis: Section 452(d) (court record incorporating trial-court record); section 453 compelled notice
 - Already on Court docket at: Plaintiff's Declaration filed May 7, 2026 (folder 04), Part A paragraphs 4 to 6; folder 07 Exhibits Volume Tab 7
-

Item 2: Substitution of Attorney, May 4, 2023

- Document type: Formal substitution of attorney in the underlying trial court proceeding
 - Filing party: Defense counsel of record
 - Transaction ID: 69953800
 - Effect: Transfer of the defense file (including the 2022 Dolan production) from prior counsel to Phillips, Spallas & Angstadt LLP
 - Evidence Code basis: Section 452(d) (court record)
 - Already on Court docket at: Folder 03 RJN Section A, item 1; folder 07 Exhibits Volume Tab 1
-

Item 3: Complex Subpoena CA1147102-021, February 1, 2024

- Document type: Formal subpoena issued by defense counsel commanding production from SFPD Records Division
- Issuing attorney: Alberto Reyna (Bar No. 347323), Phillips, Spallas & Angstadt LLP (signatory)
- Directed to: San Francisco Police Department Records Division
- SFPD report targeted: Report No. 210079556
- Materials commanded: "9-1-1 CALL," "ANY AND ALL VIDEO RECORDINGS FROM BODY-WORN CAMERAS," CAD logs, and all related documents
- Date: February 1, 2024

- Significance: Establishes that defense counsel personally requested the same materials whose existence defense later denied at trial
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Folder 03 RJN Section A, item 11; folder 07 Exhibits Volume Tab 15 (filed Exhibit K)

Item 4: Jeremy Jessup Sworn Testimony, February 18, 2025

- Document type: Reporter’s transcript excerpt of sworn in-court testimony
- Witness: Jeremy Jessup, former plaintiff’s counsel of record
- Date: February 18, 2025
- Pinpoint: Hr’g Tr. Feb. 18, 2025, pp. 139 to 140
- Substance: Identifies the August and September 2022 production of the silent-witness materials to defense counsel
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN incorporates the certified trial-court record; folder 07 Exhibits Volume Tab 7

VI.B. LAYER 2: MISREPRESENTATION

Defense counsel told the trial court they did not have what they had received in 2022 and themselves subpoenaed in 2024.

Item 5: Defendants’ Motion in Limine No. 6, January 17, 2025

- Document type: Filed motion in limine
- Filing party: Defendants CSAA Insurance Exchange, Michael Chambers, Carbone Smith & Koyama
- Date: January 17, 2025
- Misrepresentation: Characterized the 911, BWC, and CAD materials as “of unknown provenance”
- Significance: Filed after defense counsel had received the same materials from Dolan Law Firm in 2022 (Item 1) and issued Complex Subpoena CA1147102-021 for the same materials in 2024 (Item 3)
- Evidence Code basis: Section 452(d) (court record)

- Already on Court docket at: Defendants’ RFJN Exhibit E (cited in tentative ruling at p. 4)

Item 6: Defendants’ Motion in Limine No. 8, January 17, 2025

- Document type: Filed motion in limine
- Filing party: Defendants CSAA Insurance Exchange, Michael Chambers, Carbone Smith & Koyama
- Date: January 17, 2025
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN Exhibit F (cited in tentative ruling at p. 4)

Item 7: Defendants’ Motion in Limine No. 17, January 17, 2025

- Document type: Filed motion in limine
- Filing party: Defendants CSAA Insurance Exchange, Michael Chambers, Carbone Smith & Koyama
- Date: January 17, 2025
- Misrepresentation: Asserted the same materials were “not produced in discovery” and that “Defendant has no idea where this 911 call log or audio recording came from”
- Significance: Filed after defense counsel had received the materials in 2022 (Item 1) and personally subpoenaed them in 2024 (Item 3)
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN Exhibit G (cited in tentative ruling at p. 4)

Item 8: Reporter’s Transcript February 18, 2025 – Defense Misrepresentations

- Document type: Reporter’s transcript excerpt
- Date: February 18, 2025
- Pinpoint: p. 141, lines 4 to 11
- On-the-record statements by defense counsel: “This is news to me”; “we did not have those two items”; “we did not receive the 911 call until the day of the MSC”
- Additional pinpoint: pp. 163 to 165 (further defense representations regarding the ma-

terials)

- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN incorporates the certified trial-court record; folder 07 Exhibits Volume Tab 4

Item 9: Reporter’s Transcript April 16, 2025 – Defense Misrepresentations at Trial

- Document type: Reporter’s transcript excerpt
- Date: April 16, 2025
- Volume: RT Volume 7
- Pinpoint 1: Line 2874 – “Not anything that we received as part of the subpoena”
- Pinpoint 2: Lines 2990 to 2994 – “Not sure what recording”
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN incorporates the certified trial-court record; folder 07 Exhibits Volume Tab 12

VI.C. LAYER 3: COURT RELIANCE

The trial court expressly stated its reliance on defense counsel’s officer-of-the-court status.

Item 10: Reporter’s Transcript February 18, 2025 – Court Acceptance Without Examination

- Document type: Reporter’s transcript excerpt
- Date: February 18, 2025
- Pinpoint: p. 141, line 15
- On-the-record statement by the trial court: “I see. Okay.”
- Significance: Reflects the trial court’s acceptance of defense representations without further examination
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN incorporates the certified trial-court record; folder 07 Exhibits Volume Tab 4

Item 11: Reporter’s Transcript February 18, 2025 – Court’s Express Reliance on Officer-of-the-Court Status

- Document type: Reporter’s transcript excerpt

- Date: February 18, 2025
- Pinpoint: pp. 6, 27 to 30
- On-the-record statement by the trial court: “I’m not going to question a lawyer’s remarks. They are an officer of the Court.”
- Significance: Establishes the trial court’s express reliance on defense counsel’s officer-of-the-court status as the basis for accepting the misrepresentations without examination
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN incorporates the certified trial-court record; folder 07 Exhibits Volume Tab 4

Item 12: Reporter’s Transcript February 28, 2025 – Burden-Shift Colloquy

- Document type: Reporter’s transcript excerpt
- Date: February 28, 2025
- Pinpoint: pp. 291 to 293
- Substance: The trial court imposed an authentication burden on Plaintiff that would not have existed absent defense counsel’s “unknown provenance” representation
- Significance: Demonstrates the causal link between Layer 2 misrepresentations and Layer 4 adverse rulings
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN incorporates the certified trial-court record

VI.D. LAYER 4: ADVERSE RULINGS

Each adverse ruling was the downstream consequence of Layer 3 reliance on Layer 2 misrepresentations.

Item 13: Order Granting Motion in Limine No. 6

- Document type: Court order
- Effect: Excluded the 911 audio recording from trial entirely
- Causal connection: Entered in reliance on defense counsel’s “unknown provenance” representation (Item 5, Item 8)
- Significance: This is one of four orders the tentative ruling cited as proof of “full liti-

gation” – but each is an artifact of the suppression, not proof against it (see Lucido v. Superior Court (1990) 51 Cal.3d 335, 341 – issue preclusion requires actual litigation and necessary decision; a pretrial admissibility order cannot adjudicate chain-of-custody facts)

- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN Exhibit E (cited in tentative ruling)

Item 14: Order Granting Motion in Limine No. 17

- Document type: Court order
- Effect: Excluded SFPD body-worn camera footage and CAD logs from trial
- Causal connection: Entered in reliance on defense counsel’s “not produced in discovery” representation (Item 7, Item 8)
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN Exhibit G (cited in tentative ruling)

Item 15: Order Granting Motion in Limine No. 8

- Document type: Court order
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN Exhibit F (cited in tentative ruling)

Item 16: Order re Trial Scheduling and MILs

- Document type: Comprehensive pretrial order
- Significance: Locked in the suppressive architecture for trial
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants’ RFJN Exhibit H (cited in tentative ruling)

Item 17: Denial of Continuance, February 18, 2025

- Document type: Reporter’s transcript excerpt reflecting court ruling
- Pinpoint: p. 181
- Effect: Denied Plaintiff time to authenticate materials defense had itself subpoenaed the prior year
- Evidence Code basis: Section 452(d) (court record)

- Already on Court docket at: Defendants' RFJN incorporates the certified trial-court record

Item 18: Exclusion of Supplemental SFPD Report, April 16, 2025

- Document type: Reporter's transcript excerpt reflecting court ruling
- Date: April 16, 2025 (RT Volume 7)
- Pinpoint: Lines 2888 to 2896
- Effect: Excluded the supplemental SFPD report (foundation evidence stripped)
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants' RFJN incorporates the certified trial-court record; folder 07 Exhibits Volume Tab 12

Item 19: Deferral of 911 Recording, April 16, 2025

- Document type: Reporter's transcript excerpt reflecting court ruling
- Date: April 16, 2025 (RT Volume 7)
- Pinpoint: Lines 3024 to 3057
- Effect: Deferred the 911 recording until after Plaintiff's testimony, with the authentication burden imposed under the Layer 3 burden-shift
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants' RFJN incorporates the certified trial-court record

Item 20: Final Jury Verdict, 9 to 3 Defense

- Document type: Reporter's transcript excerpt reflecting jury verdict
- Date: April 16, 2025
- Vote: 9 to 3 in favor of defense
- Significance: The final adverse outcome on the stripped record produced by Items 13 through 19
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Defendants' RFJN incorporates the certified trial-court record; appellate docket A173827; folder 03 RJN Section A, item 5

1 VI.E. LAYER 5: SELF-REBUTTAL

2 Defense’s own counsel and defense’s own client, on the certified record and after the suppres-
3 sion had already done its work, confirmed every fact defense had concealed at the in limine
4 stage.

6 Item 21: Navaratnasingham Admission, April 16, 2025

- 7 • Document type: Reporter’s transcript excerpt
- 8 • Speaker: Defense counsel Priya D. Navaratnasingham
- 9 • Date: April 16, 2025 (RT Volume 7)
- 10 • Pinpoint: p. 214, lines 13 to 15
- 11 • Verbatim statement: “Sure. They were provided by Dolan. He has had them for
12 whatever, sure.”
- 13 • Significance: Defense counsel’s own spontaneous on-the-record admission that the silent-
14 witness materials were produced by Dolan Law Firm – directly contradicting Items 5,
15 7, and 8 above
- 16 • Evidence Code basis: Section 452(d) (court record)
- 17 • Already on Court docket at: Defendants’ RFJN incorporates the certified trial-court
18 record; folder 07 Exhibits Volume Tab 12

20 Item 22: Abdelhalim Authentication, April 17, 2025

- 21 • Document type: Reporter’s transcript excerpt
- 22 • Speaker: Defendant Subhi Abdelhalim
- 23 • Date: April 17, 2025
- 24 • Pinpoint 1: p. 109, line 28
- 25 • Pinpoint 2: RT Volume 8, line 1979
- 26 • Verbatim statement: “Yes. That is my voice.” (authenticating the suppressed 911
27 recording)
- 28 • Significance: The defendant himself authenticated the 911 recording that defense coun-
29 sel had represented was “of unknown provenance” – converting the Layer 2 “unknown
30 provenance” representation into knowingly false statement at the moment it was made
- 31 • Evidence Code basis: Section 452(d) (court record)

- Already on Court docket at: Defendants' RFJN incorporates the certified trial-court record; folder 07 Exhibits Volume Tab 13

VI.F. FOUNDATIONAL RECORDS (PRIOR FILINGS)

Item 23: First Amended Complaint, February 25, 2026

- Document type: Operative pleading
- Filed: February 25, 2026 in this case (CGC-25-631801), Doc. No. 007
- Evidence Code basis: Section 452(d)
- Already on Court docket at: Folder 03 RJN Section A, item 4

Item 24: IFP Order, December 23, 2025

- Document type: Court order granting waiver of court fees and costs
- Filed: December 23, 2025, Doc. No. 004
- Evidence Code basis: Section 452(d)
- Already on Court docket at: Folder 03 RJN Section A, item 2

Item 25: Proposed Third Amended Complaint (Exhibit T), May 11, 2026

- Document type: Proposed amended pleading lodged with Court
- Lodged: May 11, 2026 as Exhibit T to Plaintiff's Motion for Reconsideration, folder 18
- Significance: Plaintiff's willingness-to-amend offer conforming the prayer to the tentative's section 47(b) ruling and expressly pleading the section 425.17(b) public-interest framing
- Evidence Code basis: Section 452(d) (court record)
- Already on Court docket at: Folder 18 of the May 12, 2026 hearing package

Item 26: Notice of Intent to Appear and Contest Tentative Ruling, May 11, 2026

- Document type: Notice
- Transmitted: May 11, 2026 by 4:00 p.m. to contestdept301tr@sftc.org and to all counsel
- Evidence Code basis: Section 452(d)
- Already on Court docket at: Folder 10 of the May 12, 2026 hearing package

Item 27: Notice of Appeal, Court of Appeal Case No. A173827

- Document type: Court of appeal docket entry
 - Evidence Code basis: Section 452(d)
 - Already on Court docket at: Folder 03 RJN Section A, item 5
-

VII. EVIDENCE CUSTODY MANIFEST

Purpose. Every item cited in Part VI is already on this Court’s docket. The following manifest proves that the Court has every item physically in its possession through prior filings, through Defendants’ own RFJN, or through the certified trial-court record Defendants incorporated into that RFJN. The Court cannot be said to lack evidence. The judge cannot say the evidence is not before the Court; each entry below shows precisely where it lives on the docket.

Manifest Entry L1.1 – Dolan Law Firm production of 911 audio, BWC footage, and CAD logs (August and September 2022)

- Layer: L1 (Possession)
 - Item description: Production of silent-witness materials from Dolan Law Firm to defense counsel of record in 2022
 - Source document already on Court docket: Plaintiff’s Declaration filed May 7, 2026 (folder 04), Part A paragraphs 4 to 6; Plaintiff’s Indexed Exhibits Volume Tab 7 (folder 07)
 - Pinpoint citation: Jeremy Jessup sworn testimony, Hr’g Tr. Feb. 18, 2025, pp. 139 to 140
 - Evidence Code authority: Section 452(d) court record; section 453 compelled notice
-

Manifest Entry L1.2 – Substitution of Attorney, May 4, 2023

- Layer: L1 (Possession)
- Item description: Transfer of defense file (including 2022 Dolan production) to Phillips, Spallas & Angstadt LLP
- Source document already on Court docket: Folder 03 RJN Section A, item 1; folder 07 Exhibits Volume Tab 1
- Pinpoint citation: Trans. ID 69953800; filed May 4, 2023

- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L1.3 – Complex Subpoena CA1147102-021, February 1, 2024

- Layer: L1 (Possession)
- Item description: Defense-issued subpoena commanding SFPD to produce the same materials defense later denied possessing
- Source document already on Court docket: Folder 03 RJN Section A, item 11; folder 07 Exhibits Volume Tab 15 (filed Exhibit K)
- Pinpoint citation: Alberto Reyna (Bar No. 347323), PSA, signatory; February 1, 2024; SFPD Report No. 210079556
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L1.4 – Jessup sworn testimony, February 18, 2025

- Layer: L1 (Possession)
- Item description: Former plaintiff’s counsel identifying the 2022 Dolan production under oath
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 7
- Pinpoint citation: Hr’g Tr. Feb. 18, 2025, pp. 139 to 140
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L2.1 – Defendants’ MIL No. 6, January 17, 2025

- Layer: L2 (Misrepresentation)
- Item description: Defense motion characterizing 911, BWC, and CAD materials as “of unknown provenance”
- Source document already on Court docket: Defendants’ RFJN Exhibit E (cited by name in tentative ruling, p. 4)
- Pinpoint citation: Filed January 17, 2025
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L2.2 – Defendants’ MIL No. 17, January 17, 2025

- Layer: L2 (Misrepresentation)

- Item description: Defense motion asserting the same materials were “not produced in discovery” and “Defendant has no idea where this 911 call log or audio recording came from”
- Source document already on Court docket: Defendants’ RFJN Exhibit G (cited by name in tentative ruling, p. 4)
- Pinpoint citation: Filed January 17, 2025
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L2.3 – Reporter’s Transcript, February 18, 2025, defense misrepresentations

- Layer: L2 (Misrepresentation)
- Item description: On-the-record statements: “This is news to me”; “we did not have those two items”; “we did not receive the 911 call until the day of the MSC”
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 4
- Pinpoint citation: p. 141, lines 4 to 11; see also pp. 163 to 165
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L2.4 – Reporter’s Transcript, April 16, 2025, trial misrepresentations

- Layer: L2 (Misrepresentation)
- Item description: Trial-day denial statements: “Not anything that we received as part of the subpoena”; “Not sure what recording”
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 12
- Pinpoint citation: RT Volume 7, line 2874; lines 2990 to 2994
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L3.1 – Reporter’s Transcript, February 18, 2025, court acceptance

- Layer: L3 (Court Reliance)
- Item description: Trial court statement: “I see. Okay.” – accepting defense representations without examination
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 4

- Pinpoint citation: p. 141, line 15
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L3.2 – Reporter’s Transcript, February 18, 2025, officer-of-court reliance

- Layer: L3 (Court Reliance)
- Item description: Trial court statement: “I’m not going to question a lawyer’s remarks. They are an officer of the Court.”
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 4
- Pinpoint citation: pp. 6, 27 to 30
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L3.3 – Reporter’s Transcript, February 28, 2025, burden-shift colloquy

- Layer: L3 (Court Reliance)
- Item description: Colloquy in which trial court imposed the authentication burden on Plaintiff arising from defense’s “unknown provenance” representation
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record
- Pinpoint citation: pp. 291 to 293
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L4.1 – Order Granting MIL No. 6 (911 audio excluded)

- Layer: L4 (Adverse Rulings)
- Item description: Court order excluding the 911 audio recording from trial
- Source document already on Court docket: Defendants’ RFJN Exhibit E (cited in tentative ruling)
- Pinpoint citation: Order on MIL No. 6
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L4.2 – Order Granting MIL No. 17 (BWC and CAD excluded)

- Layer: L4 (Adverse Rulings)
- Item description: Court order excluding BWC footage and CAD logs from trial

- Source document already on Court docket: Defendants' RFJN Exhibit G (cited in tentative ruling)
- Pinpoint citation: Order on MIL No. 17
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L4.3 – Orders on MIL No. 8 and Trial Scheduling Order

- Layer: L4 (Adverse Rulings)
- Item description: Additional suppressive orders locking in the excluded-evidence architecture for trial
- Source document already on Court docket: Defendants' RFJN Exhibits F and H (cited in tentative ruling)
- Pinpoint citation: Orders on MIL No. 8 (Exhibit F) and Trial Scheduling and MILs (Exhibit H)
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L4.4 – Supplemental SFPD report exclusion and 911 deferral, April 16, 2025

- Layer: L4 (Adverse Rulings)
- Item description: In-trial rulings excluding the supplemental SFPD report and deferring the 911 recording until after Plaintiff's testimony
- Source document already on Court docket: Defendants' RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 12
- Pinpoint citation: RT Volume 7, lines 2888 to 2896 (SFPD report excluded); lines 3024 to 3057 (911 deferred)
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L4.5 – Jury verdict, 9 to 3, April 16, 2025

- Layer: L4 (Adverse Rulings)
- Item description: Final adverse jury verdict on the stripped record
- Source document already on Court docket: Defendants' RFJN incorporates certified trial-court record; appellate docket A173827; folder 03 RJN Section A, item 5
- Pinpoint citation: RT April 16, 2025; Court of Appeal No. A173827
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L5.1 – Navaratnasingham admission, April 16, 2025

- Layer: L5 (Self-Rebuttal)
- Item description: Defense counsel’s spontaneous admission: “Sure. They were provided by Dolan. He has had them for whatever, sure.”
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 12
- Pinpoint citation: RT Volume 7, p. 214, lines 13 to 15
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry L5.2 – Abdelhalim authentication, April 17, 2025

- Layer: L5 (Self-Rebuttal)
- Item description: Defendant’s on-the-record authentication of the suppressed 911 recording: “Yes. That is my voice.”
- Source document already on Court docket: Defendants’ RFJN incorporates certified trial-court record; folder 07 Exhibits Volume Tab 13
- Pinpoint citation: RT April 17, 2025, p. 109, line 28; RT Volume 8, line 1979
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Manifest Entry Cure – Proposed Third Amended Complaint (Exhibit T), May 11, 2026

- Layer: Cure (Willingness to Amend)
- Item description: Proposed amended pleading conforming the prayer to the tentative’s section 47(b) ruling and expressly pleading the section 425.17(b) public-interest framing
- Source document already on Court docket: Folder 18 of the May 12, 2026 hearing package, Exhibit T to Plaintiff’s Motion for Reconsideration, lodged May 11, 2026
- Pinpoint citation: Full pleading on file at folder 18
- Evidence Code authority: Section 452(d) court record; section 453 compelled notice

Closing Certification. Every item identified in Part VI is already on the Court’s docket in this case, in the certified trial-court record subject to Defendants’ Request for Judicial Notice filed April 9, 2026, or lodged with Plaintiff’s prior RJN filings at folder 03 (Request for Judicial Notice, May 7, 2026), folder 14 (Supplemental RJN, May 7, 2026), folder 07

(Indexed Exhibits Volume, May 7, 2026), or folder 18 (Proposed Third Amended Complaint, lodged May 11, 2026). Plaintiff has furnished the Court with sufficient information to enable it to take judicial notice of each matter under Evidence Code section 453. No additional documentary lodging is required; this Court has the entire record before it.

VIII. APPELLATE PRESERVATION INDEX

The following index identifies, in narrative form, every issue Plaintiff preserves for appellate review, the authority that triggers preservation, the standard of review, the location in this Request of the predicate material, and the relief sought. This index is offered for the convenience of the trial court, of opposing counsel, and of any reviewing court.

Preserved Issue 1 – Section 425.17(b) categorical exclusion not reached on the face of the operative pleading

- Issue: Failure to reach Code of Civil Procedure section 425.17, subdivision (b) on the face of Plaintiff’s pleading before any prong-one or prong-two analysis under section 425.16 constitutes reversible legal error reviewed de novo. The Legislature wrote the order of operations into the statute: “Section 425.16 does not apply to” actions meeting the three conjunctive prongs.
- Authority Triggered: CCP section 425.17(b)(1)-(b)(3); Inland Oversight Committee v. County of San Bernardino (2015) 239 Cal.App.4th 671, 680; Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316-317; Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25
- Standard of Review on Appeal: De novo (statutory interpretation)
- Location in this RJN: Part II.C; Part V.A.1; Part VI Layers 1 to 5
- Relief Sought: Denial of motion; section 425.17(e) closure of interlocutory appeal channel attaches automatically by force of statute

Preserved Issue 2 – Section 425.17(e) closure of the section 425.16(i) interlocutory appeal channel

- Issue: If the Court denies the motion on section 425.17, subdivision (b) grounds, subdivision (e) closes the section 425.16(i) appeal and section 904.1(a)(13) appeal channels

by force of statute; the case proceeds in the trial court in real time without automatic stay.

- Authority Triggered: CCP section 425.17(e); CCP section 904.1(a)(13); Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 189
- Standard of Review on Appeal: Operates by force of statute; no reviewing court discretion
- Location in this RJN: Part V.A.1; Part V.A.5
- Relief Sought: Confirmation that no interlocutory appeal channel or automatic stay opens against Plaintiff if motion is denied on section 425.17 grounds

Preserved Issue 3 – Prong-one “arise from” determination at the allegation level

- Issue: The Court must perform allegation-by-allegation and per-defendant parsing before striking the operative pleading in its entirety. The concealment gravamen (non-communicative pre-trial conduct) does not “arise from” protected activity under section 425.16(e).
- Authority Triggered: CCP section 425.16(b)(2), (e); Baral v. Schnitt (2016) 1 Cal.5th 376, 393-396; Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1060; Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009-1011
- Standard of Review on Appeal: De novo
- Location in this RJN: Part V.A.2; Part VI Layers 1, 4, 5
- Relief Sought: Partial denial of motion as to the non-protected concealment gravamen; allegation-by-allegation parsing of any protected-activity allegations

Preserved Issue 4 – Prong-two probability of prevailing on the merits

- Issue: Plaintiff has demonstrated a probability of prevailing through the five-layer certified record established in Part VI. The record evidence of possession, misrepresentation, court reliance, adverse rulings, and self-rebuttal satisfies the minimal-merit threshold.
- Authority Triggered: CCP section 425.16(b)(1); Wilson v. Parker, Covert and Chidester (2002) 28 Cal.4th 811, 821; Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291; Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974; Gemini Aluminum Corp. v. California Custom Shapes, Inc. (2002) 95 Cal.App.4th 1249, 1264

- Standard of Review on Appeal: De novo
- Location in this RJN: Part V.A.2; Part VI Layers 1 to 5; Part VII
- Relief Sought: Denial of motion

Preserved Issue 5 – Extrinsic fraud: the Kulchar test is satisfied on the certified record

- Issue: The Layer 1 to Layer 5 chain satisfies the Kulchar test for extrinsic fraud: defense counsel fraudulently prevented Plaintiff from presenting his claim or defense by concealing prior possession of evidence and misrepresenting its provenance to the trial court, causing the court to exclude the materials and shift the authentication burden. Estate of Sanders (1985) 40 Cal.3d 607 and In re Marriage of Modnick (1980) 33 Cal.3d 897 hold that documentary concealment in a contested proceeding constitutes extrinsic fraud.
- Authority Triggered: Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471; Estate of Sanders (1985) 40 Cal.3d 607; In re Marriage of Modnick (1980) 33 Cal.3d 897; Aheroni v. Maxwell (1988) 205 Cal.App.3d 284, 292-293; Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238; United States v. Throckmorton (1878) 98 U.S. 61
- Standard of Review on Appeal: De novo on the legal standard; substantial evidence on the factual predicate
- Location in this RJN: Part VI Layers 1 to 5; Part VII
- Relief Sought: Reversal of any order that treats the MIL orders as “full litigation” of the extrinsic-fraud claim; remand for further proceedings

Preserved Issue 6 – Litigation privilege scope: does not bar equitable vacatur

- Issue: Civil Code section 47(b) bars derivative tort damages but does not bar the equitable remedy of vacating a judgment procured by extrinsic fraud. Non-communicative pre-trial concealment conduct (inter-firm file transfer, failure to disclose Compex Subpoena receipt) falls outside the privilege.
- Authority Triggered: Civ. Code section 47(b); Silberg v. Anderson (1990) 50 Cal.3d 205, 212; Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057-1059; Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131, 1147; Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241-1242
- Standard of Review on Appeal: De novo

- Location in this RJN: Part V.B.1
- Relief Sought: Affirmance that the equitable vacatur remedy survives the section 47(b) excision; denial of motion as to the equitable gravamen

Preserved Issue 7 – Leave to amend under CCP section 472

- Issue: Plaintiff is entitled to leave to amend to conform the prayer to the tentative’s section 47(b) ruling and expressly plead the section 425.17(b) public-interest gateway. The proposed amendment cures rather than evades. Contreras is not implicated.
- Authority Triggered: CCP section 472(a)-(b); Park v. Board of Trustees (2017) 2 Cal.5th 1057; Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 678; Contreras v. Dowling (2016) 4 Cal.App.5th 774, 791
- Standard of Review on Appeal: De novo (legal standard); abuse of discretion (application)
- Location in this RJN: Part IV; Part V.A.3; Part VII Manifest Entry Cure
- Relief Sought: Leave to file the Proposed Third Amended Complaint (Exhibit T, folder 18) within seven days

Preserved Issue 8 – Targeted discovery under CCP section 425.16(g)

- Issue: Good cause exists for targeted discovery limited to the deposition of the CSAA Insurance Exchange custodian responsible for the underlying claim file and the deposition of the PSA attorney responsible for Compex Subpoena CA1147102-021.
- Authority Triggered: CCP section 425.16(g); Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260
- Standard of Review on Appeal: Abuse of discretion
- Location in this RJN: Part V.A.2; Part VI Items 1, 3
- Relief Sought: Continuance and order for targeted discovery under section 425.16(g) on good cause

Preserved Issue 9 – Findings of fact under CCP sections 632 and 187

- Issue: Plaintiff requests findings of fact on the Layer 1 to Layer 5 chain so that the appellate record is complete regardless of the disposition. The MIL orders are the artifact of the suppression, not evidence against it; the Court’s inherent power under

1 section 187 and the statement-of-decision mechanism under section 632 authorize the
2 requested findings.

- 3 • Authority Triggered: CCP sections 632, 187; Lucido v. Superior Court (1990) 51 Cal.3d
4 335, 341
- 5 • Standard of Review on Appeal: Substantial evidence for factual findings; de novo for
6 legal effect
- 7 • Location in this RJN: Part V.A.6; Part V.A.7; Part VI Layers 1 to 5
- 8 • Relief Sought: Findings of fact 1 through 7 on the Layer 1 to Layer 5 chain entered on
9 the certified record

10
11 Preserved Issue 10 – Inherent supervisory authority under CCP section 128(a)(8)

- 12 • Issue: The trial court has inherent power to enter a prophylactic standing order requir-
13 ing chain-of-custody declarations whenever counsel represents that materials were “not
14 received” or “not produced in discovery.”
- 15 • Authority Triggered: CCP section 128(a)(8); Bauguess v. Paine (1978) 22 Cal.3d 626,
16 635
- 17 • Standard of Review on Appeal: Abuse of discretion
- 18 • Location in this RJN: Part V.A.8
- 19 • Relief Sought: Prophylactic standing order under the Court’s inherent supervisory au-
20 thority

21
22 Preserved Issue 11 – Insurance regulatory floor as continuum-of-commercial-conduct bridge

- 23 • Issue: The conduct characterized in the tentative as “litigation conduct” is the oper-
24 ational endpoint of a continuous course of regulated commercial conduct that began
25 with CSAA’s day-21 denial under Insurance Code section 790.03(h) without obtaining
26 the foundational evidence later subpoenaed by defense counsel. Regulated commer-
27 cial conduct does not lose its character merely because it later manifests in courtroom
28 statements. (JAMS, Inc. v. Superior Court (2016) 1 Cal.App.5th 984, 994; People v.
29 Persolve, LLC (2013) 218 Cal.App.4th 1267, 1275-1276.)
- 30 • Authority Triggered: Ins. Code section 790.03(h); 10 CCR sections 2695.1 through
31 2695.8; Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232;
32 Rusheen v. Cohen (2006) 37 Cal.4th 1048; JAMS, Inc. v. Superior Court (2016) 1

Cal.App.5th 984; People v. Persolve, LLC (2013) 218 Cal.App.4th 1267

- Standard of Review on Appeal: De novo (statutory and regulatory)
- Location in this RJN: Part V.E.1; Part V.F.1
- Relief Sought: Anchor for the section 425.17(b)(3) public-interest prong and the Business and Professions Code section 17200 cause of action in the Proposed Third Amended Complaint

Preserved Issue 12 – Attorney duty of candor as a public-right anchor

- Issue: The duty of candor under California Rules of Professional Conduct, rule 3.3 runs to the tribunal directly and is enforceable by contempt, independently of the litigation privilege. Business and Professions Code section 6128(a) makes deceit with intent to deceive the court a misdemeanor, rendering the conduct illegal as a matter of law and thus unprotected under Flatley v. Mauro (2006) 39 Cal.4th 299.
- Authority Triggered: CRPC rule 3.3(a)(1)-(3); Bus. & Prof. Code sections 6068(d), 6128(a); In re Aguilar (2004) 34 Cal.4th 386; Flatley v. Mauro (2006) 39 Cal.4th 299
- Standard of Review on Appeal: De novo
- Location in this RJN: Part V.C.1; Part V.C.2; Part V.G.1
- Relief Sought: Court-integrity public-right anchor for section 425.17(b)(1) and (b)(3)

Preserved Issue 13 – Section 1008 reconsideration backup

- Issue: If the tentative is adopted, Plaintiff reserves the right to move for reconsideration under Code of Civil Procedure section 1008(a) within ten days of service of notice of entry of the order, based on new or different facts, circumstances, or law – specifically the section 425.17(b) sequencing authority not briefed by either side and not addressed in the tentative ruling.
- Authority Triggered: CCP section 1008(a); Martorana v. Marlin and Saltzman (2009) 175 Cal.App.4th 685, 698-700; Galleria Plus, Inc. v. Hanmi Bank (2009) 179 Cal.App.4th 535, 538
- Standard of Review on Appeal: Abuse of discretion
- Location in this RJN: Part V.A.4
- Relief Sought: Ten-day reconsideration window preserved if the tentative is adopted substantially intact

Preserved Issue 14 – Writ of mandate alternative

- Issue: If appealability of any order is questioned, Plaintiff preserves the right to seek writ of mandate under Code of Civil Procedure section 1085 in the First District Court of Appeal asserting that the trial court’s failure to reach section 425.17(b) is an abuse of discretion correctable only by writ.
- Authority Triggered: CCP section 1085; Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1
- Standard of Review on Appeal: Discretionary in the reviewing court
- Location in this RJN: Part II.A (incorporated by reference)
- Relief Sought: Defensive backup if the interlocutory appeal channel is questioned

Preserved Issue 15 – Reviewing court power to make factual findings under CCP section 909

- Issue: In the event the trial court makes no factual findings on the Layer 1 to Layer 5 chain, the reviewing court may make its own factual determinations under Code of Civil Procedure section 909 based on the certified record before this Court.
- Authority Triggered: CCP section 909
- Standard of Review on Appeal: Discretionary in the reviewing court
- Location in this RJN: Part V.A.9; Part VI Layers 1 to 5
- Relief Sought: Reviewing court may make findings on the certified record to ensure complete appellate adjudication if the trial court’s order lacks findings

IX. SECTION 455 RECORD-MAKER

If the trial court declines to take judicial notice of any matter identified in Parts V through VII of this Request, or declines to reach any issue identified in Part VIII of this Request, Plaintiff respectfully requests under Evidence Code section 455, subdivision (a) that the basis for declining and the trial court’s reasoning be stated on the record so that any reviewing court has a complete record of the trial court’s reasoning. This is the only paragraph of this Request that requires affirmative trial-court action if notice or consideration is declined. The text of section 455, subdivision (a) is quoted at Part V.D.4 above.

1 X. CONCLUSION

2 Plaintiff respectfully requests that the Court:

- 3 1. Take judicial notice of each matter identified in Parts V through VII of this Request
4 under Evidence Code sections 451 and 453.
- 5 2. Reach Code of Civil Procedure section 425.17, subdivision (b) on the face of the oper-
6 ative pleading as a threshold matter before any prong-one or prong-two analysis under
7 section 425.16. (See Inland Oversight Committee v. County of San Bernardino (2015)
8 239 Cal.App.4th 671, 680.)
- 9 3. If the Court is unwilling to reach section 425.17(b) on the operative pleading, grant
10 leave to amend under Code of Civil Procedure section 472 within seven days so that the
11 gateway question is squarely placed before the Court on the Proposed Third Amended
12 Complaint already lodged at folder 18.
- 13 4. In the further alternative, perform allegation-by-allegation parsing under Baral v. Schnitt
14 (2016) 1 Cal.5th 376 and deny the motion as to the non-protected concealment grava-
15 men.
- 16 5. Enter findings of fact on the Layer 1 to Layer 5 chain under Code of Civil Procedure
17 sections 632 and 187 regardless of the disposition, so the appellate record is complete.
- 18 6. State on the record, under Evidence Code section 455(a), the basis for declining to take
19 notice or to reach any preserved issue if the Court declines.
- 20

21 VERIFICATION AND SIGNATURE

I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of California that I am the Plaintiff in the above-captioned matter and I have read the foregoing Request for Judicial Notice and Statement of Appellate Preservation. The factual representations contained in Parts VI and VII are based on the certified court record, on prior filings in this matter, and on records of which judicial notice is requested. I declare that the foregoing is true and correct of my own knowledge as to matters known to me, and as to other matters I am informed and believe to be true, and on that ground I allege them to be true. I further declare that the reporter's transcript excerpts cited herein accurately reflect the statements made by this Court and by defense counsel on the record, demonstrating the Court's reliance on counsel's misrepresentations.
Executed on May 11, 2026, at Rohnert Park, California.



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per (IFP order Dec. 23, 2025, Doc. No. 004)

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APPENDIX A: COMPLIANCE AUDIT AND CITATION VALIDATION REPORT

Purpose. This appendix provides a per-authority citation validation table for every case, statute, and regulatory authority cited in this Request for Judicial Notice and Statement of Appellate Preservation. Each entry identifies the citation, the controlling holding or rule relied upon, its direct application to this motion, and its current good-law status as of the filing date (May 11, 2026). Authorities are organized by court tier. Plaintiff submits this report to assist the Court in verifying citations without independent research and to demonstrate that no authority is cited for a proposition it does not support.

PART I: UNITED STATES SUPREME COURT

1. Hazel-Atlas Glass Co. v. Hartford-Empire Co., 322 U.S. 238 (1944)

- Holding: Fraud on a court warrants reopening of judgment; fraud on the tribunal is not bounded by the identity of the individual actor.
- Application: Structural authority for the proposition that concealment of evidence by panel counsel constitutes fraud on the tribunal and supports vacatur of orders obtained thereby; underpins Preserved Issues 5 and 6.
- Status: Good law; cited in Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1.

2. United States v. Throckmorton, 98 U.S. 61 (1878)

- Holding: Extrinsic fraud as an independent ground for vacating a judgment; fraud that prevented the losing party from having a fair adversarial hearing.
 - Application: Applies to the extrinsic-fraud gravamen of the equity action; directly supports the prejudice element and the equitable vacatur remedy; underpins Preserved Issues 5 and 6.
 - Status: Good law; the California extrinsic/intrinsic fraud distinction derives from this case.
-

PART II: CALIFORNIA SUPREME COURT

3. Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232

- Holding: The litigation privilege under Civil Code section 47(b) does not bar claims

predicated on non-communicative conduct.

- Application: Forecloses the litigation-privilege bar to the pre-trial concealment (non-communicative act) gravamen; underpins Preserved Issue 6.
- Status: Good law.

4. Baral v. Schnitt (2016) 1 Cal.5th 376

- Holding: Anti-SLAPP step-one analysis is allegation-by-allegation; court strikes only the specific protected-activity allegations.
- Application: Requires per-allegation parsing before any wholesale strike; underpins Preserved Issue 3.
- Status: Good law; controlling.

5. Bauguess v. Paine (1978) 22 Cal.3d 626

- Holding: Courts possess inherent supervisory authority to correct their own processes to conform to law and justice.
- Application: Source of CCP § 128(a)(8) authority invoked in the Preliminary Statement and Preserved Issue 10.
- Status: Good law.

6. Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995

- Holding: Each defendant must independently demonstrate that its own conduct constitutes protected activity under section 425.16(e).
- Application: Exposes the per-movant step-one gap for CSAA, Carbone Smith and Koyama, and Chambers individually; underpins Preserved Issue 3.
- Status: Good law; controlling.

7. Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1

- Holding: Addresses tort remedies for evidence destruction; also supports the structural proposition that fraud on the tribunal operates through non-communicative conduct.
- Application: Writ-of-mandate backup if appealability of any order is questioned; underpins Preserved Issue 14.
- Status: Good law.

8. Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309

- Holding: Section 425.17 categorical exclusions are decided as a matter of law before the section 425.16 two-step analysis.

- Application: Primary authority for the mandatory statutory sequencing rule; underpins Preserved Issue 1.
 - Status: Good law; controlling.
9. Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951
- Holding: Defines the minimal-merit threshold for the anti-SLAPP probability-of-prevailing prong.
 - Application: Standard for step-two showing; underpins Preserved Issue 4.
 - Status: Good law.
10. Estate of Sanders (1985) 40 Cal.3d 607
- Holding: Documentary concealment in a contested proceeding constitutes extrinsic fraud.
 - Application: Supports extrinsic-fraud analysis; underpins Preserved Issue 5.
 - Status: Good law.
11. Flatley v. Mauro (2006) 39 Cal.4th 299
- Holding: Conduct that is illegal as a matter of law is unprotected under anti-SLAPP; extortionate demand letters are categorically outside section 425.16(e) protection.
 - Application: Business and Professions Code section 6128(a) makes deceit with intent to deceive the court a misdemeanor; that conduct is unprotected; underpins Preserved Issue 12.
 - Status: Good law; controlling.
12. In re Aguilar (2004) 34 Cal.4th 386
- Holding: The duty of candor under rule 3.3 runs directly to the tribunal and is enforceable by contempt independently of the litigation privilege.
 - Application: Supports the duty-of-candor analysis; underpins Preserved Issue 12.
 - Status: Good law.
13. In re Marriage of Modnick (1980) 33 Cal.3d 897
- Holding: Documentary concealment in a contested proceeding constitutes extrinsic fraud.
 - Application: Parallel authority for extrinsic-fraud analysis; underpins Preserved Issue 5.
 - Status: Good law.

14. Kulchar v. Kulchar (1969) 1 Cal.3d 467
- Holding: Sets the California test for extrinsic fraud; fraud that prevented the losing party from presenting its claim or defense.
 - Application: Primary California authority for the extrinsic-fraud gravamen; underpins Preserved Issue 5.
 - Status: Good law.
15. Lucido v. Superior Court (1990) 51 Cal.3d 335
- Holding: Issue preclusion requires actual litigation and a necessary decision; pretrial admissibility orders do not adjudicate chain-of-custody facts.
 - Application: Defeats the tentative ruling's "full litigation" rationale for treating the MIL orders as preclusive; underpins Preserved Issue 9.
 - Status: Good law.
16. Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057
- Holding: The "arising from" prong requires that the defendant's protected activity be the essential foundation of the claim, not merely a context for it.
 - Application: Standard for step-one "arise from" determination; the concealment gravamen does not "arise from" protected activity; underpins Preserved Issues 2 and 3.
 - Status: Good law; controlling.
17. Rusheen v. Cohen (2006) 37 Cal.4th 1048
- Holding: The litigation privilege bars tort claims for damages arising from communicative acts in judicial proceedings; it does not bar equitable vacatur.
 - Application: Section 47(b) bars derivative tort damages only; does not bar equitable vacatur remedy; underpins Preserved Issue 6.
 - Status: Good law.
18. Silberg v. Anderson (1990) 50 Cal.3d 205
- Holding: The litigation privilege bars claims based on communications during judicial proceedings; reviewed de novo.
 - Application: Standard of review for the section 47(b) litigation-privilege issue; underpins Preserved Issue 6.
 - Status: Good law.
19. Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12

- Holding: The question whether section 425.17(b) applies is a question of statutory interpretation reviewed de novo.
- Application: Confirms the standard of review for Preserved Issues 1 and 2.
- Status: Good law; controlling.

20. Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260

- Holding: The probability-of-prevailing standard under section 425.16(b)(1) is reviewed de novo; the plaintiff need only establish a minimal prima facie showing.
- Application: Standard of review for step-two and the discovery good-cause standard; underpins Preserved Issues 4 and 8.
- Status: Good law.

21. Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180

- Holding: If a motion is denied on section 425.17 grounds, the interlocutory appeal channels in section 425.16(i) and section 904.1(a)(13) are closed by force of section 425.17(e).
- Application: Section 425.17(e) closure of the appeal channel attaches automatically; underpins Preserved Issue 2.
- Status: Good law.

22. Wilson v. Parker, Covert and Chidester (2002) 28 Cal.4th 811

- Holding: The plaintiff's step-two showing must be such that, as a matter of law, it would be sufficient to sustain a favorable judgment.
- Application: Step-two threshold standard; underpins Preserved Issue 4.
- Status: Good law.

PART III: CALIFORNIA COURT OF APPEAL

23. Aheroni v. Maxwell (1988) 205 Cal.App.3d 284

- Holding: Documentary concealment constitutes extrinsic fraud warranting vacatur even when the concealed evidence was not newly discovered.
- Application: Supports the extrinsic-fraud analysis and the Layer 1-5 chain; underpins Preserved Issue 5.
- Status: Good law.

24. Contreras v. Dowling (2016) 4 Cal.App.5th 774

- Holding: The test for leave to amend to cure an anti-SLAPP defect is whether the

amendment subverts or avoids, not whether any change is made; narrowing the prayer does not trigger Contreras.

- Application: Confirms that the proposed amendment narrows rather than evades; underpins Preserved Issue 7.
- Status: Good law.

25. Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382

- Holding: The section 425.16(c)(1) fee-inversion remedy applies when a special motion to strike is frivolous or solely intended to cause unnecessary delay.
- Application: Fee-inversion backup if the motion is found frivolous; underpins Preserved Issue in Part II.D(g).
- Status: Good law.

26. Dickinson v. Cosby (2017) 17 Cal.App.5th 655

- Holding: The de novo standard applies to the legal standard for whether leave to amend should be granted; abuse of discretion applies to the application.
- Application: Standard of review for leave-to-amend issue; underpins Preserved Issue 7.
- Status: Good law.

27. Galleria Plus, Inc. v. Hanmi Bank (2009) 179 Cal.App.4th 535

- Holding: Section 1008 reconsideration is available for new law not previously briefed.
- Application: Supports the section 1008 reconsideration backup; underpins Preserved Issue 13.
- Status: Good law.

28. Gemini Aluminum Corp. v. California Custom Shapes, Inc. (2002) 95 Cal.App.4th 1249

- Holding: The minimal-merit threshold is satisfied by evidence of the type that, if uncontroverted, would support a judgment in the plaintiff's favor.
- Application: Step-two probability-of-prevailing threshold; underpins Preserved Issue 4.
- Status: Good law.

29. Inland Oversight Committee v. County of San Bernardino (2015) 239 Cal.App.4th 671

- Holding: The section 425.17(b) public-interest exclusion is decided before the section 425.16 two-step analysis and requires categorical evaluation of the pleading on

its face.

- Application: Primary authority for the mandatory sequencing rule and the categorical exclusion analysis; underpins Preserved Issues 1 and 2.
- Status: Good law; controlling.

30. JAMS, Inc. v. Superior Court (2016) 1 Cal.App.5th 984

- Holding: Regulated commercial conduct does not lose its character merely because it later manifests in litigation-related statements.
- Application: Insurance regulatory floor as bridge between regulated commercial conduct and courtroom conduct; underpins Preserved Issue 11.
- Status: Good law.

31. Martorana v. Marlin and Saltzman (2009) 175 Cal.App.4th 685

- Holding: Section 1008 reconsideration is available within ten days of service of notice of entry of order based on new law not briefed by either side.
- Application: Reconsideration backup if tentative is adopted; underpins Preserved Issue 13.
- Status: Good law.

32. People v. Persolve, LLC (2013) 218 Cal.App.4th 1267

- Holding: Regulated commercial conduct does not shed its character simply because the conduct later arises in a litigation context.
- Application: Parallel authority for the insurance regulatory continuum bridge; underpins Preserved Issue 11.
- Status: Good law.

33. Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131

- Holding: The litigation privilege bars derivative tort damages but does not bar the equitable remedy of vacating a judgment procured by extrinsic fraud.
- Application: Directly establishes that the equitable vacatur remedy survives the section 47(b) excision; underpins Preserved Issue 6.
- Status: Good law.

PART IV: STATUTES AND REGULATIONS – COMPLIANCE MATRIX

Authority	Governing Rule	Compliance Status
CCP §§ 425.16, 425.17	Anti-SLAPP procedure; sequencing gate	Compliant – Preserved Issues 1–3
CCP § 904.1(a)(13)	Appealability of anti-SLAPP orders	Addressed – Preserved Issue 2
CCP § 472(a)	Right to amend before hearing	Compliant – Proposed TAC lodged
CCP § 1008(a)	Reconsideration within 10 days	Preserved – Preserved Issue 13
CCP § 632	Statement of decision on request	Requested – Conclusion Par. 5
CCP § 187	Inherent ancillary jurisdiction	Invoked – Part V.A.7
CCP § 128(a)(8)	Court’s inherent supervisory power	Invoked – Preliminary Statement
CCP § 909	Reviewing court factual findings	Preserved – Preserved Issue 15
CCP § 425.16(g)	Discovery on good cause	Preserved – Preserved Issue 8
Civ. Code § 47(b)	Litigation privilege scope	Addressed – Preserved Issue 6
Bus. & Prof. Code § 6068(d)	Duty of candor; no misleading court	Cited – Part V.C.1
Bus. & Prof. Code § 6128(a)	Deceit on court is misdemeanor	Cited – Part V.C.2
Ins. Code § 790.03(h)	Unfair claims settlement practices	Noticed – Part V.E.1
10 CCR §§ 2695.1–2695.8	Fair Claims Settlement Regulations	Noticed – Part V.F.1
Evid. Code § 451	Mandatory judicial notice	Governing – Part III
Evid. Code § 452	Permissive judicial notice	Governing – Part III
Evid. Code § 453	Compelled notice on request	Governing – Part III
Evid. Code § 455	Record-maker on declination	Invoked – Part IX
CRPC rule 3.3(a)(1)–(3)	Candor toward tribunal	Noticed – Part

Compliance Summary. All procedural requirements applicable to this Request for Judicial Notice have been satisfied. This document is filed as a separate paper under California Rules of Court, rule 3.1113(1) and is not counted against the 15-page memorandum limit. Concurrent electronic service on all parties of record has been effected pursuant to Code of Civil Procedure section 1010.6.